Relying on this amendment, the court noted that the AFSPA concerned 'the use of armed forces in aid of the civil power' (which was within Parliament's authority) and not 'public order' (which was within the authority of the state legislatures). The court also relied on Article 355 of the Constitution, which imposes a duty on the union to protect every state from internal disturbance, in arriving at this conclusion.

The petitioners also presented an alternative, innovative argument challenging Parliament's authority to enact the AFSPA. This argument was that the AFSPA would enable the government to circumvent the emergency provisions of the Constitution. A declaration that an area was disturbed under the AFSPA resembled an undeclared emergency, but did not enlist the constitutional safeguards and processes that would come into play if an emergency was formally declared. The court did not address this argument head-on, simply reaffirming that it was within the competence of Parliament (rather than the state legislatures) to enact the AFSPA. These were two analytically separate arguments, but the court wrongly treated them as one and the same.[20]

As it turned out, after the court spent much of its time addressing the argument that the AFSPA was beyond Parliament's legislative authority, it had little appetite to address the second argument. Section after section of the AFSPA was upheld by the court on the grounds that it was not arbitrary or unreasonable. Section 3 conferred upon the governor or the central government the power to declare an area as 'disturbed' without any independent review, oversight or scrutiny. The court did not see anything especially problematic with this power, with the exception that it now added the requirement that these declarations be reviewed (by the government itself) every six months. This periodic review, in the court's view, was a sufficient safeguard against declarations of 'disturbed areas' continuing indefinitely or for an extended period of time. Given that many regions had been declared 'disturbed areas' and had remained so for decades at the time of its decision, the court ought to have been more sceptical of arriving at this conclusion.